

not have that serve his turn, for he himself hath made the nobility swear in chancery. Therefore I would have their lordships informed what privileges they have lost. Next, I would have them note the luxuriant authority of that court, and how it is an inextricable labyrinth, wherein resideth such a monster as gormandizeth the liberty of all subjects whatsoever.

*Mr. Recorder Finch.* If we shall make but a presentation of this, we do in a sort accuse him, nay judge him: if the gentlemen be admitted to give testimony, before it shall condemn another it must agree with itself. First, I heard him say, he gave it as a present from himself: yet afterwards he saith, he told my Lord Chancellor he had it from Awbrey.—Again, Awbrey speaks not of any delivery of money himself to my Lord Chancellor. Then again it is urged, that a discontented suitor writ letters to my lord: the letters are rejected, not hearkened unto; what doth this but free him? In the other case, if Egerton, out of a desire to congratulate him at his coming to the seal, made my lord a present for his kindnesses and pains in former businesses, what wrong hath he done if he hath received a present? And though a suit were depending, yet who keeps a register in his heart of all causes? Nay, who can, among such a multitude? And for the 6000 marks, there is no colour to say that ever he was to have any part thereof. For taking away the privilege of the nobility in requiring an oath, he found the court possessed of it before he came there; so that we have no sufficient grounds to accuse so great a lord upon that account.—But if we shall present Articles to the lords, what do we (as I said before) but accuse him?

*Sir Edward Coke.* It is objected, that we have but one single witness; therefore no sufficient proof. I answer, That in the 37th of Eliz. in a complaint against Soldier-Sellers, for that having warrant to take up soldiers for the wars, if they pressed a rich man's son they would discharge him for money, there was no more than *singularis testis* in one matter; but though they were single witnesses in several matters, yet agreeing in one and the same third person, it was held sufficient to prove a work of darkness. For in such works it is a marvel there are any witnesses.—But some object that these men are culpable; and therefore no competent witnesses. I answer, They came not to accuse, but were interrogated.—If I be interrogated, I had rather speak truth than respect any man; and you will make Bribery to be unpunished, if he that carrieth the Bribe shall not be a witness. In this, one witness is sufficient; he that accuseth himself by accusing another, is more than three witnesses: and this was wrought out of them.

Ordered, That the Complaint of Awbrey and Egerton against the Lord Chancellor and the bishop for Corruption, for the 100*l.* and 400*l.* and the recognizance, should be drawn up by sir Robert Phillips, sir Edward Coke, Mr. Noy, and sir Dudley Digges; and that the

same be related to the lords without prejudice or opinion at a conference; and that a Message be sent to the lords for this purpose on Monday next. Adjourned, &c.

March 19.

A Message was sent to the lords by sir Robert Phillips, to desire a Conference touching the Lord Chancellor and the bishop of Landaff, being petitioned against by Awbrey and Egerton.

Sir Robert Phillips reports that the lords had agreed to a Conference.

Mr. Secretary Calvert brings a Message from the king, "That this parliament hath sat a long time, and Easter is near come, and thinks it is fit there should be a cessation for a time; yet the king will appoint no time, but leaves it to yourselves. But for the beginning again, he thinketh the 10th of April a fit time, but will appoint none; only he would have you take care that there be no impediment in the Subsidies.—The king also took notice of the Complaints against the Lord Chancellor, for which he was sorry, for it hath always been his care to have placed the best; but no man can prevent such accidents; but his comfort was, that the house was careful to preserve his honour. And his majesty thought not fit to have the affair hang long in suspense; therefore would not have any thing to hinder it. But for the furtherance thereof, he proposed a Commission of six of the higher house, and twelve of the lower house, to examine it upon oath. This proposition if we liked well, he would send the like to the lords, and this he thought might be done during this Cessation: and though he hoped the Chancellor was free, yet if he should be found guilty, he doubted not but you would do him justice."

*Sir Edward Coke* said, We should take heed the Commission do not hinder the manner of our parliamentary proceedings.

The Answer returned to the King was, To render him thanks for the first Part of his gracious Message. And for the second, we desired that the like Message may be sent to the lords; for there being so great a concurrence betwixt us, we may have conference with them about it. And then adjourned, &c.

March 20.

Sir Edward Giles made a motion that one Churchil should be called in. Whereupon there was a Petition of one Montacute, Wood, &c. against the Lord Chancellor for taking 300*l.* of the lady Wharton, and making orders, &c. which was read. Churchil and Keeling were said to be Witnesses, and a committee was appointed to examine them.

Sir Robert Phillips reports from the Conference, that according to the commandment of this house he had delivered those Heads which were agreed on at the Conference yesterday; excusing himself if he had failed in any point. That the lords accepted it with a great deal of affection, as sensible of the wrongs done to the Commonwealth; and returned Answer by the Lord Treasurer; First, by way of Question,